

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 12, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV00984

PASTORE v. GROW INDUSTRIES, LLC

(UNOPPOSED) RESPONDENT’S MOTION TO SET ASIDE DEFAULT

The court intends to grant the unopposed motion. Respondent has demonstrated it had no knowledge of the action, the motion is timely, and the default was not caused by avoidance of service. (Code Civ. Proc., § 473.5, subd. (a), (c).) However, the parties should appear to update the court regarding plaintiff’s notice of conditional settlement, filed August 4, 2026.

No. 25CV01041

JORDON v. ASI CAPITOLA, INC., et al.

DEFENDANT ACCESSIBLE SPACE, INC.’S DEMURRER AND MOTION TO STRIKE COMPLAINT

The demurrer is overruled. Defendant Accessible Space, Inc. has not complied with Cal. Rules of Court, rule 3.1113(b) by including “a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” The demurrer fails to analyze any of the law cited to the facts at issue.

The motion to strike is denied.

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I. BACKGROUND

On March 30, 2026, plaintiff Deborah Wakefield Jordon sued defendants ASI Capitola, Inc. and Accessible Space, Inc. for breach of the implied warranty of habitability, breach of the implied warranty of quiet enjoyment, private nuisance, negligence/constructive eviction, and unfair competition. Plaintiff is a disabled senior citizen who relies on a power wheelchair for mobility and lives at 3245 Clares Street, Unit 112, Capitola, CA in a HUD-assisted apartment. She has lived there since 2017. She expended her own funds to install ADA-approved custom carpet and a smart home electronics system. She has consistently paid rent on time. She contends there are chronic uninhabitable conditions in the unit, including but not limited to, extensive water damage from burst pipes on several occasions, food borne illnesses from faulty refrigerator, electric sparking, mold, laundry conversion to app-based payment which she cannot use, broken ADA-compliant doors, sloping floors, and cracked glass stovetop. These conditions allegedly caused plaintiff injuries, health complications, displacement, higher costs, and pain and suffering (including alleged exacerbation of her bipolar condition, depression, and suicidal ideation). In 2024, the City of Capitola issued a formal notice of violation requiring building permits for repairs, but defendants allegedly ignored it.

Defendant seeks to strike plaintiff's claims for intentional infliction of emotional distress and punitive damages on the ground she has failed to plead specific, clear, and convincing facts demonstrating malice, oppression, or fraud, citing Code of Civil Procedure sections 425.13, 435, and 436. Defendant filed a late amendment of the motion to strike, since it failed to include defendant ASI Capitola, Inc. in its initial service and filing on June 18, 2026. The amendment does not impact the court's ruling on the motion to strike.

II. LEGAL STANDARDS

California Code of Civil Procedure section 436 permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, either by attacking the entire pleading or portions thereof. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394.) The grounds for a motion to strike must appear on the face of the pleadings under attack, or from matter which the court may judicially notice. (Code Civ. Proc., § 437; *CPF Agency Corp. v. R&S Towing Service* (2005) 132 Cal.App.4th 1014, 1032.)

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements that the defendant is guilty of oppression, fraud or malice. (Code Civ. Proc., § 3294, subd. (a); *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.)

“Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*College Hospital, Inc., supra*, 8 Cal.4th at

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725.) “As amended to include [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.”

(*Ibid.*) The statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (*Ibid.*) Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having the character of outrage frequently associated with crime.’” (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.)

III. DISCUSSION

Plaintiff argues that defendants mischaracterize the complaint since she has not pled any IIED claim; instead, she alleges severe emotional distress related to defendants’ repeated long-standing failures to provide a habitable unit. (Complaint ¶¶ 1-27, 31-34, 37-38, 41-50, Prayer.) She also contends that one of the statutes on which defendants rely (Code of Civil Procedure section 425.13) does not apply to this case since it governs punitive damages related to health care providers. She pleads specific allegations of untenable conditions of which the defendants were aware but affirmatively chose not to repair in a timely manner, exacerbating plaintiff’s suffering. She contends in the habitability context, such conduct qualifies as “malicious” and “oppressive” pursuant to Civil Code section 3294 as confirmed by *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, and supports pleading punitive damages.

The court finds plaintiff’s allegations are sufficient to support a claim for punitive damages because they show defendants intentionally failed to maintain the premises. At this pleading stage, these facts rise to the level of malice, oppression or fraud; they describe affirmative conduct by defendants that was intentional and/or willful.

As in *Stoiber*, punitive damages can be stated against landlords in cases of danger to tenants. The allegations in *Stoiber* included leaking of sewage from the bathroom plumbing, defective and dangerous electrical wiring, structural weaknesses in the walls, deteriorated flooring, falling ceiling, leaking roof, dilapidated doors, and broken windows, as well as the Health Department’s notice to vacate and demolish the subject premises which listed the

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following violations among others: heavy cockroach infestation, broken interior walls, broken deteriorated flooring on front porch, falling ceiling, deteriorated, over-fused electrical wiring, lack of proper plumbing connection to sewage system in bathroom, sewage under bathroom floor, leaking roof, broken windows, and fire hazard. (*Stoiber, supra*, 101 Cal.App.3d at 912.) At this stage in the litigation, plaintiff has satisfied the pleading requirements for punitive damages and the motion to strike is denied.

No. 26CV00475

LARSSON v. ESCHEN

DEFENDANT JAMES ESCHEN'S MOTION FOR JUDGMENT ON THE PLEADINGS

The motion is denied.

Self-represented plaintiff April Larsson sued her former attorney, defendant James Eschen, for legal malpractice for allegedly failing to properly handle her creditor claim in a bankruptcy. She alleges Eschen falsely advised her that the mandatory creditors' meeting had been continued, failed to notify her of critical proceedings in the action, abandoned representation without notice, failed to preserve her rights as a creditor, and as a direct result she lost the opportunity to protect her \$72,739.92 judgment against the debtor. Her complaint states causes of action for professional negligence, breach of fiduciary duty, and breach of contract. Defendant filed his answer on April 9, 2026.

On May 1, 2026, defendant filed this motion contending the complaint fails to state essential elements: (1) that the underlying judgment was collectible; (2) that plaintiff would have recovered the judgment absent defendant's conduct, and (3) that defendant's conduct was the proximate cause of the loss.

The court will consider plaintiff's late-filed opposition.

A motion for judgment on the pleadings serves the function of a demurrer, challenging only defects on the face of the complaint. As with a demurrer, the grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice. A trial court's determination of a motion for judgment on the pleadings accepts as true the factual allegations that the plaintiff makes. In addition, it gives them a liberal construction. (Code Civ. Proc., § 438; *Eckler v. Neutragena Corp.* (2015) 238 Cal.App.4th 433, 439; *Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515-516.)